

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

BANK OF AMERICA, N.A., Successor by Merger to BAC HOME
LOANS SERVICING, LP, Formerly Known as COUNTRYWIDE
HOME LOANS SERVICING, LP, Respondent, v FEDIE R. REDD,
Appellant.

Submitted January 13, 2025; decided March 13, 2025

Reported below, 2024 NY Slip Op 68794(U).

Motion for reargument of motion for leave to appeal denied
[see 42 NY3d 1023 (2024)].

BANK OF AMERICA, N.A., Successor by Merger to BAC HOME
LOANS SERVICING, LP, Formerly Known as COUNTRYWIDE
HOME LOANS SERVICING, LP, Respondent, v FEDIE R. REDD,
Appellant.

Submitted March 10, 2025; decided March 13, 2025

Reported below, 2024 NY Slip Op 68794(U).

Motion for a stay dismissed as academic.

In the Matter of BRANDON D. GENEVA D., Respondent; ROBERT
L.D., Appellant.

Decided March 13, 2025

Reported below, 233 AD3d 782.

Appeal dismissed without costs, by the Court of Appeals sua
sponte, upon the ground that the order appealed from does not
finally determine the proceeding within the meaning of the
Constitution.

CHARLES F. LEK, Respondent, v OLESYA A. LEK, Appellant.

Submitted January 21, 2025; decided March 13, 2025

Reported below, 232 AD3d 547.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

NELLA MANKO, Appellant, v SHOREFRONT APARTMENTS, LLC, et al., Respondents.

Decided March 13, 2025

Reported below, 2024 NY Slip Op 74995(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

Chief Judge WILSON took no part.

In the MATTER OF PARVATI D., Appellant. ROMAN D., Respondent; ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent.

Submitted November 4, 2024; decided March 13, 2025

Motion for leave to appeal dismissed upon the ground that it does not lie (*see* CPLR 5602 [a]).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NICOLE HUDSON, Appellant.

Submitted February 18, 2025; decided March 13, 2025

Reported below, 232 AD3d 200.

Motion for assignment of counsel granted and Twyla Carter, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JARVIS
LEWIS, Appellant.

Submitted February 18, 2025; decided March 13, 2025

Reported below, 228 AD3d 1226.

Motion for assignment of counsel granted and Jenay Nurse Guilford, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAQUAN
MOORE, Appellant.

Submitted February 24, 2024; decided March 13, 2025

Reported below, 229 AD3d 1193.

Motion for assignment of counsel granted and Julie A. Cianca, Esq., Monroe County Public Defender, 10 North Fitzhugh Street, Rochester, NY 14614 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JONATHAN
RIOS, Appellant.

Submitted March 3, 2025; decided March 13, 2025

Reported below, 225 AD3d 1285.

Motion for assignment of counsel granted and Sarah S. Holt, Esq., Monroe County Conflict Defender, 16 East Main Street, Suite 600, Rochester, NY 14614 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NAIM
ROPER, Appellant.

Submitted February 18, 2025; decided March 13, 2025

Reported below, 231 AD3d 491.

Motion for assignment of counsel granted and Twyla Carter, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TRAVIS WOODS, Appellant.

Submitted February 24, 2025; decided March 13, 2025

Reported below, 226 AD3d 597.

Motion for assignment of counsel granted and Jenay Nurse Guilford, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

In the Matter of FREDERICK D. PINA, Appellant, v CITY OF NEW YORK et al., Respondents.

Decided March 13, 2025

Reported below, 232 AD3d 497.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

RED TARGET, LLC, Doing Business as SCJ COMMERCIAL FINANCIAL SERVICES, Respondent, v LANE No. 1, Doing Business as ROUTE 11 CLUB, Defendant, and RICHARD L. SPOSATO, Also Known as RICHARD SPOSATO, Appellant.

Submitted January 21, 2025; decided March 13, 2025

Reported below, 233 AD3d 1525.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for a stay dismissed as academic.

LAUREN ANDERSEN RITCHIE, Appellant, v JAMES MACLEOD RITCHIE, Respondent. (App Div Nos. 2023-04588 and 2024-01368.)

Decided March 13, 2025

Reported below, 2024 NY Slip Op 77987(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

APPEALS WITHDRAWN AND DISCONTINUED

(February 1, 2025 through February 28, 2025)

Davis v Marshall & Sterling, 3d Dept: 217 AD3d 1073 2/24/25
Inc.

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(February 1, 2025 through February 28, 2025)

People v Aguilar	1st Dept: 231 AD3d 454 (Bronx)	denied 2/3/25 (Rivera, J.)
People v Allah	App Div, 2d Dept: 2024 NY Slip Op 80052(U) (Kings)	dismissed 2/28/25 (Halligan, J.)
People v Anderson	3d Dept: 231 AD3d 1369 (Albany)	denied 2/3/25 (Rivera, J.)
People v Argudo	2d Dept: 232 AD3d 907 (Queens)	denied 2/3/25 (Rivera, J.)
People v Bailey	3d Dept: 232 AD3d 1031 (Washington)	denied 2/27/25 (Singas, J.)
People v Blanding	1st Dept: 231 AD3d 523 (NY)	denied 2/24/25 (Cannataro, J.)
People v Boddie	2d Dept: 234 AD3d 708 (Queens)	denied 2/26/25 (Garcia, J.)
People v Bohn	4th Dept: 232 AD3d 1253 (Monroe)	denied 2/18/25 (Halligan, J.)
People v Brown	1st Dept: 235 AD3d 101 (Bronx)	denied 2/20/25 (Garcia, J.)
People v Butler	3d Dept: 232 AD3d 935 (Franklin)	denied 2/18/25 (Singas, J.)
People v Carden (Jajuan)	3d Dept: 233 AD3d 1095 (Albany)	denied 2/12/25 (Singas, J.)
People v Carden (Jajuan)	3d Dept: 233 AD3d 1096 (Albany)	denied 2/12/25 (Singas, J.)
People v Casas	1st Dept: 232 AD3d 555 (NY)	denied 2/21/25 (Singas, J.)
People v Chapman (Cole)	4th Dept: 233 AD3d 1503 (Cayuga)	denied 2/28/25 (Garcia, J.) (Appeal No. 1)
People v Chapman (Cole)	4th Dept: 233 AD3d 1504 (Cayuga)	denied 2/28/25 (Garcia, J.) (Appeal No. 2)
People v Coke	App Div, 4th Dept, 12/16/24 (Niagara)	dismissed 2/26/25 (Cannataro, J.)
People v Colbert	4th Dept: 233 AD3d 1523 (Monroe)	denied 2/3/25 (Rivera, J.)
People v Copeland	2d Dept: 229 AD3d 564 (Queens)	denied reconsideration 2/3/25 (Rivera, J.)

People v Diallo	1st Dept: 232 AD3d 427 (NY)	denied 2/3/25 (Rivera, J.)
People v Dimas	2d Dept: 228 AD3d 955 (Westchester)	denied 2/28/25 (Cannataro, J.)
People v Donegan	2d Dept: 232 AD3d 804 (Kings)	denied 2/3/25 (Rivera, J.)
People v Drayton	2d Dept: 231 AD3d 1057 (Queens)	denied 2/3/25 (Rivera, J.)
People v Dyce	2d Dept: 233 AD3d 890 (Kings)	denied 2/28/25 (Garcia, J.)
People v Edmonds (Quinten)	4th Dept: 229 AD3d 1275 (Genesee)	denied 2/28/25 (Cannataro, J.)
People v Edmonds (Quinton)	4th Dept: 229 AD3d 1275 (Genesee)	denied 2/28/25 (Cannataro, J.)
People v Feliz	2d Dept: 231 AD3d 1061 (Queens)	denied 2/13/25 (Halligan, J.)
People v Gadsden	1st Dept: 231 AD3d 556 (Bronx)	denied 2/28/25 (Rivera, J.)
People v Garcia	1st Dept: 232 AD3d 553 (Bronx)	denied 2/3/25 (Rivera, J.)
People v Gause	4th Dept: 230 AD3d 1573 (Steuben)	denied 2/13/25 (Halligan, J.)
People v Graham	1st Dept: 232 AD3d 497 (NY)	denied 2/3/25 (Rivera, J.)
People v Greenfeld	2d Dept: 234 AD3d 712 (Rockland)	denied 2/25/25 (Singas, J.)
People v Gurley	App Term, 1st Dept: 84 Misc 3d 128(A) (NY)	denied 2/18/25 (Garcia, J.)
People v Henley	3d Dept: 232 AD3d 1117 (Chemung)	denied 2/20/25 (Singas, J.)
People v Hensleigh	3d Dept: 233 AD3d 1105 (Saratoga)	denied 2/3/25 (Rivera, J.)
People v Howard	4th Dept: 232 AD3d 1306 (Monroe)	denied 2/25/25 (Singas, J.) (Appeal No. 1)
People v Jackson (Earl)	4th Dept: 233 AD3d 1520 (Cayuga)	denied 2/21/25 (Singas, J.)
People v Jackson (Latief)	4th Dept: 233 AD3d 1533 (Onondaga)	denied 2/27/25 (Singas, J.)
People v Jacobowitz	1st Dept: 234 AD3d 417 (NY)	denied 2/26/25 (Cannataro, J.)
People v Jacoby	4th Dept: 232 AD3d 1284 (Erie)	denied 2/18/25 (Halligan, J.)
People v Johnson (Austin)	1st Dept: 231 AD3d 652 (NY)	denied 2/24/25 (Cannataro, J.)
People v Johnson (Joseph)	1st Dept: 234 AD3d 451 (Bronx)	denied 2/28/25 (Singas, J.)
People v Jones	County Ct, 9/30/24 (Monroe)	denied 2/26/25 (Singas, J.)
People v Jordan	4th Dept: 232 AD3d 1253 (Cayuga)	denied 2/13/25 (Halligan, J.)

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People v Kayumov	1st Dept: 231 AD3d 680 (NY)	denied 2/3/25 (Rivera, J.)
People v Kelly	4th Dept: 231 AD3d 1515 (Monroe)	denied 2/4/25 (Halligan, J.)
People v Kirkey	4th Dept: 233 AD3d 1510 (Wayne)	denied 2/6/25 (Garcia, J.)
People v Likus	County Ct, 8/13/24 (Ontario)	denied 2/28/25 (Cannataro, J.)
People v Linares	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 83 Misc 3d 136(A) (Queens)	denied 2/27/25 (Rivera, J.)
People v Lora	2d Dept: 234 AD3d 873 (Queens)	denied 2/27/25 (Rivera, J.)
People v Luperon	1st Dept: 234 AD3d 504 (NY)	denied 2/21/25 (Singas, J.)
People v Malcolm	4th Dept: 231 AD3d 1503 (Erie)	denied 2/18/25 (Halligan, J.)
People v Marte	2d Dept: 226 AD3d 926 (Westchester)	denied 2/7/25 (Halligan, J.)
People v Martinez	1st Dept: 233 AD3d 595 (Bronx)	denied 2/27/25 (Rivera, J.)
People v McCoy	App Term, 1st Dept: 84 Misc 3d 126(A) (NY)	denied 2/6/25 (Singas, J.)
People v McCracken	4th Dept: 231 AD3d 1488 (Monroe)	denied 2/24/25 (Cannataro, J.)
People v McPhail	4th Dept, 9/5/24 (Monroe)	dismissed 2/4/25 (Halligan, J.)
People v Merolle	1st Dept: 232 AD3d 555 (NY)	denied 2/7/25 (Garcia, J.)
People v Meyers	3d Dept: 233 AD3d 1266 (Chemung)	denied 2/24/25 (Garcia, J.)
People v Micheaux	1st Dept: 232 AD3d 426 (NY)	denied 2/6/25 (Singas, J.)
People v Mitchell	App Div, 2d Dept: 2024 NY Slip Op 80052(U) (Kings)	dismissed 2/28/25 (Halligan, J.)
People v Morey	3d Dept: 231 AD3d 1363 (Madison)	denied 2/18/25 (Halligan, J.)
People v Motell	4th Dept: 229 AD3d 1330 (Oswego)	denied 2/4/25 (Halligan, J.)
People v Murray (Dwayne)	1st Dept: 233 AD3d 449 (Bronx)	denied 2/27/25 (Rivera, J.)
People v Murray (Mizziah)	4th Dept: 232 AD3d 1291 (Oneida)	denied 2/3/25 (Rivera, J.)
People v Omar	App Term, 1st Dept: 84 Misc 3d 131(A) (NY)	denied 2/27/25 (Rivera, J.)
People v Pearson	4th Dept: 230 AD3d 1593 (Oneida)	denied 2/20/25 (Singas, J.)
People v Perrone	1st Dept: 234 AD3d 417 (Bronx)	denied 2/26/25 (Garcia, J.)
People v Person	2d Dept: 233 AD3d 804 (Kings)	denied 2/6/25 (Singas, J.)

People v Pertsas	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 84 Misc 3d 136(A) (Richmond)	denied 2/27/25 (Rivera, J.)
People v Pervil	2d Dept: 233 AD3d 805 (Kings)	denied 2/3/25 (Rivera, J.)
People v Pinckney	2d Dept: 230 AD3d 598 (Queens)	denied 2/28/25 (Cannataro, J.)
People v Quiroz	App Term, 1st Dept: 84 Misc 3d 128(A) (Bronx)	denied 2/27/25 (Rivera, J.)
People v Rainey	4th Dept: 231 AD3d 1533 (Erie)	denied 2/13/25 (Halligan, J.)
People v Rios	4th Dept: 225 AD3d 1285 (Monroe)	granted 2/7/25 (Halligan, J.)
People v Rivera	1st Dept: 233 AD3d 548 (Bronx)	denied 2/24/25 (Cannataro, J.)
People v Robb	2d Dept: 233 AD3d 805 (Kings)	denied 2/20/25 (Singas, J.)
People v Roth	4th Dept: 233 AD3d 1510 (Cayuga)	denied 2/26/25 (Cannataro, J.)
People v Salazar	1st Dept: 233 AD3d 417 (NY)	denied 2/26/25 (Cannataro, J.)
People v Sanchez	2d Dept: 233 AD3d 711 (Queens)	denied 2/27/25 (Rivera, J.)
People v Santos (Joel)	4th Dept: 230 AD3d 1586 (Jefferson)	denied 2/28/25 (Halligan, J.) (Appeal No. 1)
People v Santos (Joel)	4th Dept: 230 AD3d 1587 (Jefferson)	denied 2/28/25 (Halligan, J.) (Appeal No. 2)
People v Serrano	2d Dept: 229 AD3d 646 (Kings)	denied 2/26/25 (Halligan, J.)
People v Shabazz	2d Dept: 231 AD3d 968 (Nassau)	denied 2/13/25 (Halligan, J.)
People v Sloane	2d Dept: 232 AD3d 630 (Putnam)	denied 2/28/25 (Garcia, J.)
People v Smith	App Term, 2d Dept, 9th & 10th Jud Dists: 84 Misc 3d 129(A) (Westchester)	denied 2/6/25 (Singas, J.)
People v Smith-Rucker	App Div, 4th Dept: 2023 NY Slip Op 75295(U) (Oneida)	denied reconsideration 2/26/25 (Singas, J.)
People v Suber	1st Dept: 231 AD3d 447 (Bronx)	denied 2/24/25 (Cannataro, J.)
People v Thomas	1st Dept: 233 AD3d 568 (Bronx)	applications denied 2/27/25 (Singas, J.)
People v Villanueva	App Term, 1st Dept: 84 Misc 3d 132(A) (Bronx)	denied 2/21/25 (Singas, J.)
People v Williams	2d Dept: 232 AD3d 631 (Queens)	denied 2/3/25 (Rivera, J.)
People v Wilson	1st Dept: 233 AD3d 417 (NY)	denied 2/3/25 (Rivera, J.)

People v Yates

4th Dept: 232 AD3d 1319 (Oneida)

denied 2/3/25
(Rivera, J.)

VICKY WARE BEY, Appellant, v CITY OF NEW YORK et al., Respondents.

Submitted January 13, 2025; decided March 18, 2025

On the Court's own motion, appeal transferred, without costs, to the Appellate Division, First Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]). Motion for financial relief dismissed as academic. Motion for ancillary relief dismissed upon the ground that this Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

In the Matter of JAMES BORDONARO et al., Appellants, v VINCENT J. MARTORANA, etc., et al., Respondents.

Submitted January 13, 2025; decided March 18, 2025

Motion for leave to appeal dismissed upon the ground that no appeal lies to this Court from the decision of an individual Justice of the Appellate Division. Motion for a stay dismissed as academic. Motion for ancillary relief dismissed upon the ground that this Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

In the Matter of BRANDON J., Respondent, v LEOLA K., Respondent. AARON L., Appellant.

Submitted November 4, 2024; decided March 18, 2025

Reported below, 229 AD3d 918.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for financial relief dismissed as academic.

In the Matter of BRANDON J., Respondent, v LEOLA K., Appellant. AARON L., Respondent.

Submitted December 2, 2024; decided March 18, 2025

Reported below, 229 AD3d 918.

Motion for leave to appeal dismissed upon the ground that appellant, having taken no appeal to the Appellate Division, may not appeal to this Court from the Appellate Division order of affirmance.

CEDAR DEVELOPMENT EAST, LLC, Appellant, v BOARD OF EDUCATION OF THE ONTEORA CENTRAL SCHOOL DISTRICT, Respondent.

Submitted November 25, 2024; decided March 18, 2025

Reported below, 229 AD3d 950.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that granted defendant's motion to strike portions of plaintiff's reply brief, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of CENTER FOR JUDICIAL ACCOUNTABILITY, INC., et al., Appellants, v NEW YORK STATE JOINT COMMISSION ON PUBLIC ETHICS et al., Respondents. (Index No. 904235-22) (APL-2024-150).

In the MATTER OF CENTER FOR JUDICIAL ACCOUNTABILITY, INC., et al., Appellants, v NEW YORK STATE COMMISSION ON LEGISLATIVE, JUDICIAL, AND EXECUTIVE COMPENSATION et al., Respondents. (Index No. 902654-24) (APL-2024-149 and APL-2024-175).

Submitted January 6, 2025; decided March 18, 2025

Reported below, 2024 NY Slip Op 76756(U); 228 AD3d 1148.

On the Court's own motion, appeals, insofar as taken on behalf of Center for Judicial Accountability, Inc. by Elena Ruth Sassower, dismissed, without costs, upon the ground that Elena Ruth Sassower is not Center for Judicial Accountability, Inc.'s authorized legal representative (*see* CPLR 321 [a]); appeal in the first captioned matter insofar as taken by Elena Ruth Sassower on her own behalf, from the October 2024 Appellate Division order, dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding/

action within the meaning of the Constitution and appeal insofar as also treated as taken from the June 2024 Appellate Division order dismissed, without costs, upon the grounds that (1) as to the portion of the order that affirmed the dismissal of the petition and the denial of sanctions, no substantial constitutional question is directly involved and (2) the order does not otherwise finally determine the proceeding/action within the meaning of the Constitution; appeals in the second captioned matter insofar as taken by Elena Ruth Sassower on her own behalf, from the August 2024 Supreme Court orders and November 2024 Supreme Court order, transferred, without costs, to the Appellate Division, Third Department, upon the ground that direct appeals do not lie when questions other than the constitutional validity of a statute are involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]). Motion, on behalf of Center for Judicial Accountability, Inc. by Elena Ruth Sassower, for sanctions etc. dismissed upon the ground that Elena Ruth Sassower is not Center for Judicial Accountability, Inc.'s authorized legal representative (*see* CPLR 321 [a]); motion, by Elena Ruth Sassower on her own behalf, for sanctions etc. denied.

Chief Judge WILSON took no part.

COUNTY OF ONONDAGA et al., Respondents, v STATE OF NEW YORK et al., Appellants, et al., Defendant.

COUNTY OF NASSAU et al., Respondents, v STATE OF NEW YORK et al., Appellants.

COUNTY OF ONEIDA et al., Respondents, v STATE OF NEW YORK et al., Appellants.

COUNTY OF RENSSELAER et al., Respondents, v STATE OF NEW YORK et al., Appellants.

JASON ASHLAW et al., Respondents, v STATE OF NEW YORK et al., Appellants, et al., Defendants.

COUNTY OF ROCKLAND et al., Respondents, v STATE OF NEW YORK, Appellant.

STEVEN M. NEUHAUS et al., Respondents, v KATHLEEN HOCHUL, Appellants, et al., Defendants.

COUNTY OF DUTCHESS et al., Respondents, v STATE OF NEW YORK et al., Appellants.

Decided March 18, 2025

Reported below, 86 Misc 3d 214.

Appeals transferred without costs, by the Court of Appeals sua sponte, to the Appellate Division, Fourth Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]).

GARY J. LAVINE, Appellant, v RITA M. GLAVIN, Respondent.

Submitted November 12, 2024; decided March 18, 2025

Reported below, 219 AD3d 1165.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

UTICA FIRST INSURANCE COMPANY, Respondent, v COTE AGENCY INC. et al., Defendants, and BALDES PROTECTION AGENCY, INC., et al., Appellants.

Submitted November 12, 2024; decided March 18, 2025

Reported below, 227 AD3d 1479.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

WILMINGTON SAVINGS FUND SOCIETY, etc., Respondent, v JAMES J. BORDONARO, Appellant.

Submitted January 13, 2025; decided March 18, 2025

Motion for leave to appeal dismissed upon the ground that it does not lie (*see* CPLR 5602). Motion for a stay dismissed as academic.

In the Matter of MARGO WOODLEY, Appellant, v SHEILA J. POOLE, in Her Capacity as Commissioner of the New York State Office of Children and Family Services, et al., Respondents.

Submitted August 12, 2024; decided March 18, 2025

Reported below, 226 AD3d 461.

Motion for leave to appeal granted. Motion for financial relief granted.

841-853 FEE OWNER, LLC, Respondent, v SPACE INITIATIVES LLC et al., Appellants.

Submitted December 9, 2024; decided March 20, 2025

Reported below, 227 AD3d 434.

Motion for reargument of motion for leave to appeal denied [see 42 NY3d 981 (2024)].

In the Matter of the Foreclosure of Tax Liens by COUNTY OF ALBANY. COUNTY OF ALBANY, Respondent; PHOENIX OF ALBANY, Appellant.

Submitted December 30, 2024; decided March 20, 2025

Reported below, 224 AD3d 1194.

Motion for reargument of motion for leave to appeal denied [see 42 NY3d 1031 (2024)].

In the Matter of the Claim of WILFREDO GONZALEZ, Appellant, v NORTHEAST PARENT & CHILD SOCIETY et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent. LAW FIRM OF ALEX DELL, PLLC, Appellant.

Submitted December 23, 2024; decided March 20, 2025

Reported below, 232 AD3d 1011.

Motion, insofar as Wilfredo Gonzalez seeks leave to appeal, dismissed upon the ground that he is not a party aggrieved (see CPLR 5511); motion, insofar as Law Firm of Alex Dell, PLLC seeks leave to appeal from that portion of the Appellate Division order as affirmed the September 2023 decision, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise granted.

In the Matter of JOHNSON & JOHNSON et al., Respondents, v
NORTHWELL HEALTH INC., Appellant. (And Another Proceed-
ing.)

Submitted January 6 2025; decided March 20, 2025

Reported below, 231 AD3d 481.

Motion by appellant Northwell Health Inc. for reargument of
motion for leave to appeal denied with one hundred dollars
costs and necessary reproduction disbursements [*see* 42 NY3d
1026 (2024)].

In the Matter of RICHARD MILLS, Appellant, v NEW YORK STATE
BOARD OF PAROLE et al., Respondents.

Submitted December 16, 2024; decided March 20, 2025

Reported below, 2024 NY Slip Op 76751(U).

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the proceeding within the meaning of the Constitution.

SHIGEKO NAKAGAWA, Appellant, v DIAN Z. JIANG, Respondent.

Submitted January 13, 2025; decided March 20, 2025

Reported below, 84 Misc3d 135(A), 2024 NY Slip Op 51815(U).

Motion for leave to appeal dismissed upon the ground that
this Court does not have jurisdiction to entertain the motion
from the order of the Appellate Term (*see* CPLR 5602 [a]). Mo-
tion for financial relief dismissed as academic. Motion for ancil-
lary relief dismissed upon the ground that this Court does not
have jurisdiction to entertain it (*see* NY Const, art VI, § 3).

FELIPE A. RUISECH et al., Appellants, v STRUCTURE TONE INC., Initially Sued Herein as STRUCTURE TONE GLOBAL SERVICES, INC., Respondent/Second Third-Party Plaintiff-Respondent, et al., Respondents. TISHMAN SPEYER PROPERTIES, L.P., et al, Third-Party Plaintiffs-Respondents/Third Third-Party Plaintiffs-Respondents, v CBRE, INC., Third-Party Defendant-Respondent. A-VAL ARCHITECTURAL METAL III, LLC, Second Third-Party Defendant-Respondent/Third Third-Party Defendant-Respondent.

Submitted January 13, 2025; decided March 20, 2025

Reported below, 208 AD3d 412.

Motion by respondents Tishman Speyer Properties, L.P. et al. for reargument denied [*see* 42 NY3d 1061 (2024)].

DERRICK THOMPSON, Appellant, v STATE OF NEW YORK, Respondent. (Claim No. 131587.)

Submitted November 25, 2024; decided March 20, 2025

Reported below, 2024 NY Slip Op 60181(U).

Motion for reargument denied [*see* 42 NY3d 963 (2024)].

[255 NE3d 655, 230 NYS3d 111]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CLEVELAND LAWSON, Also Known as EMANUEL MARKS, Appellant.

Argued November 21, 2024; decided December 12, 2024

PROCEDURAL SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the First Judicial Department, entered April 17, 2023. The Appellate Term affirmed a judgment of the Criminal Court of the City of New York, New York County (Steven M. Stat-singer, J., at suppression hearing; Kate Paek, J., at plea and sentence), which had convicted defendant, upon a plea of guilty, of driving while intoxicated.

People v Lawson, 78 Misc 3d 131(A), 2023 NY Slip Op 50342(U), reversed.

HEADNOTE**Crimes — Suppression Hearing — Reargument**

The suppression court in defendant's prosecution, which initially held that the People had failed to show the illegality of the U-turns defendant had made and suppressed all evidence resulting from the stop of defendant's vehicle, should not have granted the People's motion to reargue in order to present a different legal theory as to the illegality of the U-turns that they had not raised at the original suppression hearing. If the People have had a full and fair opportunity to oppose suppression, and the suppression court has issued a ruling on the merits, the People may not have an additional opportunity to shore up their evidentiary or legal position. Under the circumstances here, where the People were unprepared for the suppression hearing and sought to reargue the legal issue to remedy their lack of preparedness, the same principle should apply. Although the People may be permitted to reargue the legal or factual issues of the suppression proceedings, allowing the suppression court to grant the People's motion to reargue in these circumstances would run afoul of the "full and fair opportunity" principle and the policies of finality and judicial efficiency underlying it.

APPEARANCES OF COUNSEL

Twyla Carter, The Legal Aid Society, New York City (Iván Pantoja of counsel), for appellant.

Alvin L. Bragg, Jr., District Attorney, New York City (Jared Wolkowitz, Jennifer Covais and Steven C. Wu of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Term should be reversed and the accusatory instrument dismissed.

In 2017, defendant Cleveland Lawson* made two U-turns in Manhattan and was stopped by a New York City Police Department officer in a patrol car. The officer asked defendant for his license, and after observing signs of intoxication, administered a breath test.

Arguing that the stop was unlawful, defendant moved to suppress all evidence resulting from it, including the test results. At the suppression hearing, the officer testified that he stopped defendant because he believed U-turns were not permissible in the area. On cross-examination, defense counsel asked the officer for the basis of his belief. The officer replied, "Just vehicle traffic laws," and admitted he did not know the section "off the top of [his] head." After both parties questioned

* During the traffic stop, defendant gave the officer a fake driver's license bearing the name "Cleveland Lawson," and the instant case proceeded against him under that name. Defendant's actual name is Emanuel Marks.

the officer, the court asked from which lanes defendant turned and whether the area was residential or commercial. Upon the conclusion of the officer's testimony, defense counsel argued U-turns were legal unless prohibited and cited to certain rules governing U-turns. The court then noted that it was illegal to make a U-turn in a business district in New York City and cited Vehicle and Traffic Law § 105 for the definition of a business district. The People argued that there were enough businesses in the area to qualify the area as a business district, but had presented no evidence sufficient to show that the area was within a business district. The court suppressed the evidence, holding the People had failed to show the illegality of the turns.

After the court's ruling, the People requested to call another witness to establish the area was a business district. The court characterized the People's request as an application to reopen the hearing and denied it, explaining that "[y]ou had your chance to meet your burden. The same statutes have been on the books forever." One month later, the People moved for reargument. The People posited that the rules governing U-turns in New York City were "far more complex" than they had understood at the time of the hearing and noted that New York City Department of Transportation Traffic rule 4-07 (h) (2) prohibited U-turns on all divided highways (*see* Rules of City of NY Dept of Transportation [34 RCNY] § 4-07 [h] [1], [2]). The People argued that the officer's testimony, which had mentioned the road defendant was driving on had a median, sufficiently established that the U-turns were not permitted. Defendant opposed and argued the People could not use a motion for reargument to present the court with new arguments as to why the stop was lawful. The suppression court granted the People's motion to reargue and, on this new basis, held the stop was lawful and denied defendant's suppression motion. Defendant thereafter pleaded guilty to driving while intoxicated and was sentenced to 40 days in jail.

On appeal, the Appellate Term affirmed the judgment (78 Misc 3d 131[A], 2023 NY Slip Op 50342[U] [App Term, 1st Dept 2023]). The Appellate Term held that the suppression court had inherent authority to vacate its initial suppression ruling (*see* 2023 NY Slip Op 50342[U], *1). A Judge of this Court granted defendant leave to appeal (40 NY3d 998 [2023]).

Our case law makes clear that, if the People have had a full and fair opportunity to oppose suppression, and the suppres-

sion court has issued a ruling on the merits, the People may not have an additional “opportunity to shore up their evidentiary or legal position” (*People v Kevin W.* 22 NY3d 287, 289 [2013]; see *People v Havelka*, 45 NY2d 636, 642-644 [1978]; *People v Bryant*, 37 NY2d 208, 211 [1975] [there is “no justification . . . to afford the People a second chance to succeed where once they had tried and failed”]; see also *People v Cook*, 34 NY3d 412, 417-418 [2019]). Under the circumstances of this case, where the People were unprepared for the suppression hearing and sought to reargue the legal issue to remedy their lack of preparedness, the same principle should apply.

At a suppression hearing, the People bear the burden of showing the legality of the police conduct in the first instance (see *People v Walls*, 37 NY3d 987, 988 [2021]). Here, the court granted defendant’s motion for suppression because the People failed to demonstrate that defendant’s U-turns were illegal and therefore that the stop was lawful. Neither the Assistant District Attorney nor the arresting officer could identify any traffic law provision violated by defendant. Moreover, the People did not request a recess or adjournment to determine the statutory basis for the stop, nor did they request permission to furnish a post-hearing submission to identify any relevant provision of law. Instead, the People returned a month after the court granted suppression, offering a different legal theory that they had not raised at the original suppression hearing. On that new legal theory, the court changed course and denied defendant’s motion to suppress.

Of course, “[b]efore sentence is imposed, trial courts in criminal cases have the general inherent authority to correct their own mistakes” (*Matter of Van Leer-Greenberg v Massaro*, 87 NY2d 996, 998 [1996]; see also *Kevin W.*, 22 NY3d at 295), which may include granting leave to reargue. Although the People may be permitted to reargue the legal or factual issues of the suppression proceedings, allowing the suppression court to grant the People’s motion to reargue in these circumstances would run afoul of our “full and fair opportunity” principle and the policies of finality and judicial efficiency underlying it.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Order reversed and accusatory instrument dismissed, in a memorandum.
